

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1361

By: Woolley

AS INTRODUCED

An Act relating to schools; defining terms; prohibiting school personnel from requesting and using certain pronouns or alternate names in certain situations; prohibiting students from requesting and using certain pronouns or alternate names in certain situations; providing exemptions; requiring notification of violations; allowing disciplinary action; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 24-162 of Title 70, unless there is created a duplication in numbering, reads as follows:

A. For purposes of this section:

1. "Assigned sex at birth" means a set of either XX or XY chromosomes biologically present when a person was born, which shall be proven by the gender documented in a person's valid birth certificate;

2. "Public school" means all free schools supported by public taxation and shall include nurseries, kindergartens, elementary, which may include either K-6 or K-8, secondary schools, technology

center schools that have minor children attending, and such other school classes and instruction as may be supported by public taxation that have minor children attending; and

3. "School personnel" means a faculty member of a public school, teacher of a public school, employee of a public school, or employee of a public school partner such as a contractor, volunteer, and nonprofit employee. This section only applies to personnel acting within the scope of his or her duties for a public school.

B. School personnel shall not:

1. Ask a student to address them by a pronoun or alternate name that is inconsistent with the school personnel's biological sex without written permission from the student's parent or legal guardian;

2. Ask a student what his or her preferred pronoun or alternate name is without written permission from the student's parent or guardian; and

3. Refer to a student by a pronoun or alternate name that is inconsistent with the student's assigned sex at birth without written permission from the student's parent or legal guardian.

C. A public school student shall not:

1. Ask school personnel to refer to the student using a pronoun or alternate name that is inconsistent with the student's assigned sex at birth without written permission from the student's parent or legal guardian;

1 2. Ask school personnel what his or her preferred pronoun or
2 alternate name is without written permission from the student's
3 parent or guardian; and

4 3. Refer to school personnel by a pronoun or alternate name
5 that is inconsistent with the school personnel's assigned sex at
6 birth without written permission from the student's parent or legal
7 guardian.

8 D. This section shall not apply to school personnel and
9 students with genetically verifiable disorders of sex development,
10 including but not limited to, aneuploidy, XX or XY sex reversal
11 syndromes, and ovotesticular disorder.

12 E. If any school personnel learns of any violation of this
13 section, he or she shall inform a school administrator immediately.
14 Once informed, school administrators shall notify the parents or
15 legal guardians of all students involved with said violation within
16 twenty-four (24) hours, and shall include a detailed description of
17 the violation with such notification.

18 F. School personnel found to have violated this section may be
19 subject to disciplinary action, including but not limited to,
20 teacher license suspension or revocation, contract cancellation, or
21 termination of employment or partnership.

22 SECTION 2. This act shall become effective July 1, 2025.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

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